DEMAND FOR PAYMENT

Texas Property Code Chapter 28, Prompt Payment

Prepared 9 November 2026
Draft for signature

To	_____ contractor of record, name and registered address
From	**Elite Austin**, commercial plumbing and HVAC, Austin, Texas
Invoice	INV-2607-013 dated 28 July 2026
Project	a mechanical retrofit in Travis County
Statutory due date	4 August 2026 (7 days, Prop. Code 28.002(b))

Dear Sir or Madam,

Elite Austin furnished labour and materials on a mechanical retrofit in Travis County. Invoice INV-2607-013 for $16,700.00 was issued on 28 July 2026. It is unpaid. It is now **97 days** past the date the statute makes it payable.

If any owner's payment for this work has not been received, say so in writing and identify the unpaid application and its due date. Otherwise the seven day clock in § 28.002(b) governs and interest runs.

Amount demanded today: **$17,498.85**

$16,700.00 principal plus **$798.85** statutory interest. The balance grows **$8.24** every day it stays unpaid.

1. THE STATUTE FIXES THE DUE DATE

Tex. Prop. Code § 28.002(b) is not a guideline. A contractor who receives an owner's payment "shall pay each of its subcontractors the portion of the owner's payment ... not later than the seventh day after the date the contractor receives the owner's payment."

> “The payment required by this subsection must be made not later than the seventh day after the date the contractor receives the owner's payment.”
> § 28.002(b)

2. INTEREST RUNS AT 1.5 PERCENT A MONTH

Tex. Prop. Code § 28.004(a) starts interest the day after the payment becomes due. § 28.004(b) sets the rate:

> “An unpaid amount bears interest at the rate of 1-1/2 percent each month.”
> § 28.004(b), 18 percent a year

Interest accrued from 5 August 2026 to today is **$798.85**. It keeps accruing until the date of delivery, the date of mailing, or judgment (§ 28.004(c)).

3. COSTS AND ATTORNEY'S FEES FOLLOW THE PRINCIPAL

Tex. Prop. Code § 28.005(b): in an action under the chapter the court “may award costs and reasonable attorney's fees as the court determines equitable and just.”

4. WORK CAN BE SUSPENDED WITHOUT LIABILITY FOR DELAY

Tex. Prop. Code § 28.009 lets a subcontractor suspend performance on 10 days' written notice to the owner and the owner's lender stating that payment has not been received and that performance will be suspended for nonpayment. A subcontractor who suspends under the section is not liable for the delay.

5. DEMAND

Pay **$17,498.85** within **10 days** of the date of this letter. If the balance is not paid, Elite Austin will file the lien affidavit before **15 November 2026** and pursue the principal, the accrued interest, costs and fees.

Payment or a written good faith dispute with specific reasons, within the 10 days, avoids the filing.

Yours faithfully,

_____

Elite Austin
Austin, Texas
512-637-4237

Reply to r4wdesk4183@fldubai.com. Prepared by Kolsinger Desk from the public statute and the invoice details supplied. The claimant signs and sends. Drafting only, not legal advice, no representation.

SCHEDULE A, THE INTEREST

Item	Amount
Principal, invoice INV-2607-013	$16,700.00
Invoice date	28 July 2026
Statutory due date, 7 days	4 August 2026
Days overdue today	97
Rate	1.5% a month, $8.24 a day
Interest accrued	$798.85
Total demanded	**$17,498.85**

THE FILING DEADLINE

Lien affidavit must be filed with the Austin project county clerk by **15 November 2026**, 6 days from today (Tex. Prop. Code 53.052(b)).

The 53.056 notice date (15 October 2026) has passed. The lien affidavit date above governs.

Miss the affidavit date and the lien is gone. The debt survives; the security does not.

If the 53.056 notice went out in the month it fell due, the lien stands and the affidavit is the only date left. If it did not, the claim runs on the contract and Chapter 28: the interest, the costs and the fees all survive, the security against the property does not.

THE TWO RECORDS THIS LETTER NEEDS

- Your invoice, and the date you last worked or delivered on the project.
- The owner's name and the project address, for the 53.056 notice above. The county clerk indexes the affidavit against them.

HOW TO SEND IT

- Sign it. Send it certified mail, return receipt, to the contractor's registered address, and by email to the address that sends you the pay applications.
- Send the same letter to the owner and the owner's lender if you want the 28.009 suspension to run.
- Keep the receipt. It is the proof of the date.

WHAT THIS IS NOT

It is a pre-suit demand under Chapter 28 and the lien statute, not a lawsuit and not a filing. The claimant signs. Drafting only, not legal advice.

THE STATUTE, VERBATIM

§ 28.004. “(a) An unpaid amount required under this chapter begins to accrue interest on the day after the date on which the payment becomes due. (b) An unpaid amount bears interest at the rate of 1-1/2 percent each month.”

§ 53.052(b). A claimant other than an original contractor must file the affidavit with the county clerk “not later than the 15th day of the fourth month after the later of: (1) the month the claimant last provided labor or materials; or (2) the month the claimant would normally have been required to deliver the last of specially fabricated materials.”

Source: Texas Property Code, statutes.capitol.texas.gov, verified 9 November 2026. Section text quoted without alteration.